

TITLE 468 - AID TO DEPENDENT CHILDREN (ADC)

CHAPTER 1 - GENERAL BACKGROUND

001. LEGAL BASIS. The Nebraska Aid to Dependent Children (ADC) Program is governed and funded by state and federal sources. Title IV-A of the Social Security Act governs the Temporary Assistance to Needy Families (TANF) federal block grant program which partially funds Aid to Dependent Children. See also Nebraska Revised Statutes (Neb. Rev. Stat.) §§ 43-501 through 43-517 and various sections in chapters 45, 61, and 68 of Nebraska Revised Statutes.

002. PURPOSE AND SCOPE. The purpose of Aid to Dependent Children is to provide assistance to needy families so that children can be cared for in their own homes and to reduce the dependency of needy parents by promoting job preparation, work, and marriage.

003. ADMINISTRATION. The Aid to Dependent Children Program is administered by the Nebraska Department of Health and Human Services in accordance with state laws and with rules, regulations, and procedures established by the Director.

004. DEFINITIONS. For use within the Aid to Dependent Children Program, the following definitions will apply unless the context in which the term is used denotes otherwise:

004.01 ABSENT PARENT. A parent who is not residing in the home where his or her child(ren) is living.

004.02 AID TO DEPENDENT CHILDREN. A categorical program consisting of financial assistance.

004.03 ADEQUATE NOTICE. Notice of case action which includes a statement of what action the Department intends to take, the reason for the intended action, the specific regulation that supports the action, or the change in federal or state law that requires the action.

004.04 APPLICANT. An individual who applies for program assistance.

004.05 APPLICATION. A verbal or written request to the Department indicating a desire to participate in the Aid to Dependent Children and Employment First Programs on a department approved form.

004.06 APPLICATION DATE. For new and reopened cases, the date a properly signed application is received.

004.07 ARREARAGE. Past due child support owed under a court order or an administrative order. If the obligor has arrearages he or she is said to be "in arrears".

004.08 ASSIGNMENT. The legal transfer of an individual's right to benefits to the Nebraska Department of Health and Human Services. This includes child, spousal, and medical support.

004.09 CASH MEDICAL SUPPORT. An amount ordered to be paid toward the cost of health insurance provided by a public entity or by another parent through employment or otherwise or for other medical costs not covered by insurance.

004.10 CATEGORICAL ASSISTANCE. Assistance administered by the Nebraska Department of Health and Human Services. For the purposes of this definition, it includes Aid to Dependent Children (ADC), Child Welfare Payment and Medical Services Program, Assistance to the Aged, Blind, or Disabled (AABD), State Disability Program (SDP), and the Refugee Resettlement Program (RRP).

004.11 CHILD SUPPORT. Money that is:

(A) Ordered by a court of competent jurisdiction on behalf of a minor child; or

(B) Paid by the noncustodial parent without a court order.

004.12 COMPONENTS. Employment First activities in which Aid to Dependent Children applicants and recipients participate. A participant may be in more than one activity.

004.13 CONSERVATOR. An individual appointed by a court of competent jurisdiction to control and manage the estate, property, or other business affairs of a person who, the court has determined, is unable to do so.

004.14 CONTRIBUTIONS. Verified payments which are paid by an individual other than a noncustodial parent:

(A) Directly to a vendor on behalf of an Aid to Dependent Children unit; or

(B) To an individual in the Aid to Dependent Children unit.

004.15 DEBT TO THE STATE. The amount of support owed to the State of Nebraska when a partial termination of the assignment is filed as a result of the Aid to Dependent Children benefits paid on behalf of the child(ren). The amount of the debt is the lesser of the following figures:

(A) The total amount of Aid to Dependent Children benefits paid since February 1976 (when the assignment provisions were first implemented) minus the collections received by the Department as a result of the assignment; or

(B) The total court-ordered arrearage as of the date the partial termination is filed.

004.16 DEPARTMENT. The Nebraska Department of Health and Human Services.

004.17 DEPENDENT CHILD. A child who is living in the home of a relative specified by law or a legally appointed guardian or conservator unless removed from the home by judicial determination (see Title 479) and is:

(A) Unborn beginning with the first day of the mother's third trimester through age 17; or

(B) Age 18 if a full-time student regularly attending a secondary school or participating in an Employment First component.

004.18 ELIGIBILITY PERIOD. The period of time for which a unit is eligible for Aid to Dependent Children, provided all eligibility requirements continue to be met.

004.19 EMANCIPATED MINOR. A child age 18 or younger who is considered an adult because he or she has:

(A) Married;

(B) Moved away from the parent(s)' home and is not receiving support from the parent(s) and it is in the child's best interests to be considered emancipated;

(C) A minor who is considered emancipated pursuant to the provisions of Neb. Rev. Stat. § 71-6902.02; or

(D) A child who has been judicially emancipated by a court of competent jurisdiction.

004.20 FINANCIALLY RESPONSIBLE INDIVIDUAL. The natural parent(s), legal parent(s), adoptive parent(s) or step-parent(s).

004.21 FUGITIVE FELON. A person who has been charged with a felony and who has fled from the jurisdiction of the court where the crime was committed.

004.22 GRANT CASE. A unit receiving an Aid to Dependent Children payment or eligible to receive payment but not receiving it because of the minimum payment provision.

004.23 HOUSEHOLD. Individuals living together. There may be more than one public assistance unit within a household.

004.24 INTENTIONAL PROGRAM VIOLATION (IPV). Any action by an individual to intentionally:

(A) Make a false statement, either verbally or in writing, to obtain benefits to which the unit is not entitled;

(B) Conceal information to obtain benefits to which the unit is not entitled; or

(C) Alter one or more documents to obtain benefits to which the unit is not entitled.

004.25 LEGAL GUARDIAN. An individual appointed by a court of competent jurisdiction to be in charge of the affairs of a person who cannot effectively manage his or her own affairs because of his or her age or incapacity.

004.26 MINIMUM PAYMENT PROVISION. The smallest amount for which a grant is issued. No grant is issued for \$9.99 or less.

004.27 MINOR PARENT. An individual age 18 or younger, with a child. If emancipated, a minor parent is treated as an adult for Aid to Dependent Children purposes.

004.28 MINOR PARENT HEAD OF HOUSEHOLD. A minor parent who is not living with a specified relative and has no guardian or conservator.

004.29 NEED. Economic need when referred to as a condition of eligibility.

004.30 PARTICIPANT. An individual who is required to participate in the Employment First Program.

004.31 PAYEE. A parent, other specified relative, or a legally appointed guardian or conservator who exercises the responsibility for the care and control of the child(ren) and to whom the assistance payment for the child(ren) is made.

004.32 PAYMENT MONTH. The calendar month in which assistance is paid.

004.33 PAYMENT STANDARD. The maximum grant payment that an Aid to Dependent Children recipient family may receive.

004.34 POWER OF ATTORNEY. A written statement allowing one person to act for another person. A power of attorney may be authorized generally for the management of a specified business or enterprise or more often specifically for the accomplishment of a particular transaction.

004.35 RECIPIENT. An individual who is receiving Aid to Dependent Children benefits.

004.36 RETROACTIVE PAYMENT. Any payment made during the current month but for a prior month.

004.37 SPECIFIED RELATIVE. A relative with whom a dependent child may live and receive assistance. The relative must be a father, mother, grandfather, grandmother, brother, sister, stepfather, stepmother, stepbrother, stepsister, uncle, aunt, first cousin, second cousin, nephew, or niece. These relatives may be half blood, related by adoption, or from a preceding generation as denoted by prefixes of grand, great, great-great, or great-great-great. A child may also live with the spouse of any persons previously named even after the marriage has been terminated by death or

divorce.

004.38 SPOUSAL SUPPORT. Alimony or maintenance support for a spouse or former spouse.

004.39 STANDARD OF NEED. The initial income test in Aid to Dependent Children “gap” budgeting against which net earned income is measured. The standard of need represents the regular recurring monthly amount necessary for basic subsistence and is used to calculate a unit’s Aid to Dependent Children benefit amount. The standard of need represents the monthly combined cost of food, clothing, sundries, home supplies, utilities, laundry, and shelter, including taxes and insurance. Beginning July 1, 1997, the standard of need used to calculate Aid to Dependent Children payments automatically increases in accordance with Neb. Rev. Stat. § 43-513. As of July 1, 2019, the standard of need for a single individual was \$579.00 plus \$135.00 for each additional eligible individual in the Aid to Dependent Children unit. The standard of need will continue to be adjusted automatically in accordance with Neb. Rev. Stat. § 43-513 and without the need to further amend this section.

004.40 SUPPLEMENTAL PAYMENT. Any payment made for and during the current month.

004.41 TEMPORARY ASSISTANCE TO NEEDY FAMILIES (TANF). A block grant from the federal government which funds Aid to Dependent Children, Employment First, and some Child Care.

004.42 THIRD PARTY MEDICAL PAYMENT. A payment from any health insurance plan, individual, or group for medical expenses.

004.43 THIRD TRIMESTER OF PREGNANCY. Three calendar months prior to the month in which the child is expected to be born and the month of birth.

004.44 TIMELY NOTICE. A notice of case action dated and mailed at least ten calendar days before the date the action becomes effective.

004.45 UNIT. Eligible individuals considered in determining the grant.

004.46 WAIVER. A voluntary written request to terminate an Aid to Dependent Children Cash Assistance case made by a recipient.

004.47 WITHDRAWAL. A voluntary retraction of an application.

005. DISCLOSURE OF INFORMATION REGARDING FUGITIVE FELON. If a local or state law enforcement officer provides the recipient’s Social Security Number and verification that the recipient is a fugitive felon, the Department may disclose, with the approval of the local administrator, the name and current address of an Aid to Dependent Children grant individual.

006. INDIVIDUAL RESPONSIBILITIES. Individuals applying for or receiving Aid to Dependent Children benefits are required to:

(A) Provide complete and accurate information. State and federal law provides penalties of a fine, imprisonment, or both for persons found guilty of obtaining assistance or services for which they are not eligible by making false statements or failing to report promptly any changes in their circumstances;

(B) Report a change in circumstance no later than ten days following the change, unless good cause is shown. The recipient is responsible for establishing the existence of a good cause circumstance. Unverified statements do not constitute good cause. Changes required to be reported include:

(i) Change or receipt of a resource;

(ii) Changes in who lives in the home of the Aid to Dependent Children unit;

(iii) New employment;

(1) The individual must report new employment within ten days of receipt of the first paycheck.

(iv) When employment has ended;

(v) Changes in the amount of monthly income, including:

(1) All changes in unearned income; and

(2) Changes in the source of employment, in the wage rate and in employment status, such as part-time to full-time or full-time to part-time. For reporting purposes for Aid to Dependent Children, 30 hours per week is considered full-time.

(a) Changes in wage rate or status must be reported within ten days of the first paycheck being received that reflects the change.

(C) Cooperate with Employment First requirements and complete an Employment First Self-Sufficiency Contract, if appropriate, and comply with its terms;

(D) Cooperate in obtaining any third party medical payments;

(E) Cooperate with state and federal quality control;

(F) Contact the agency for an interview within 30 days of the date of application if notified that an interview is required; and

(G) Provide verification of information when requested to do so by the Department.

007. INDIVIDUAL RIGHTS. Individuals applying for or receiving Aid to Dependent Children benefits have the right to:

- (A) Apply. Anyone who wishes to apply for assistance must be given the opportunity to do so. No one may be denied the right to apply for public assistance;
- (B) Reasonably prompt action on their application for assistance;
- (C) Adequate notice of any action affecting their application or assistance case;
- (D) Appeal to the Director for a hearing on any action or inaction with regard to an application, the amount of the assistance payment, or failure to act with reasonable promptness. The appeal must be filed in writing within 90 days of the action or inaction;
- (E) Have their information treated confidentially;
- (F) Have their civil rights upheld. No person may be subjected to discrimination on the grounds of his or her race, color, national origin, sex, age, disability, religion or political belief;
- (G) Have the program requirements and benefits fully explained;
- (H) Be assisted in the application process by the person of their choice; and
- (I) Referral to other agencies.

008. APPLICATION. An application must be properly signed by an individual for himself or herself, by the applicant's guardian or conservator, by an individual acting under a duly executed power of attorney, or by a specified relative applying on behalf of, or for, a child. When adding a program to the application, the application date is the date the request to add the program is made. A properly signed application contains:

- (A) Name;
- (B) Address; and
- (C) A written, electronic or telephonic signature in a manner consistent with the State of Nebraska's Supplemental Nutritional Assistance Program's requirements under Title 475.

008.01 PROMPT ACTION ON APPLICATIONS. The Department has 30 days from the date the application is received to make an eligibility determination.

008.02 WITHDRAWALS. The applicant may voluntarily withdraw an application.

008.03 AUTHORIZATION FOR INVESTIGATION. For some sources the Department asks the individual to sign a Release of Information when it appears that information given is incorrect, when the individual is unable to furnish the necessary information, or for sample quality control verification. A copy of the authorization for information from the application for assistance may be used if the source will accept it.

008.04 NEW APPLICATION. A new application is required after one calendar month of ineligibility or after an application has been denied.

009. NOTICE OF ACTION. A Notice of Action is sent to inform the applicant or recipient of any action affecting his or her eligibility.

009.01 ADEQUATE NOTICE. An adequate notice must include a statement of what action the Department intends to take, the reason for the intended action, the specific regulation that supports the action, or the change in federal or state law that requires the action.

009.02 TIMELY NOTICE. A timely notice must be dated and mailed at least ten calendar days before the date that action would become effective, which is always the first day of the month.

009.03 ADEQUATE AND TIMELY NOTICE. In cases of intended adverse action, including action to discontinue, terminate, suspend, or reduce assistance, or to change the manner or form of payment or service to a more restrictive method, such as a protective payee, the applicant or recipient is given adequate and timely notice.

009.04 SITUATIONS REQUIRING ADEQUATE NOTICE ONLY. In the following situations, only adequate notice is required:

(A) The Department has factual information confirming the death of an individual in the unit;

(B) The Department receives a written and signed statement from an individual in the unit:

(i) Stating that assistance is no longer required; or

(ii) Giving information which requires termination or reduction of assistance, and indicating, in writing, that the individual understands the consequences of supplying such information;

(C) An individual in the unit has been admitted or committed to an institution, and no longer qualifies for assistance;

(D) An individual in the unit has been placed in skilled nursing care, intermediate care, or long-term hospitalization or the individual is receiving assisted living waiver services;

(E) An individual in the unit's whereabouts are unknown and agency mail directed to the individual has been returned by the post office indicating no known forwarding address;

(F) An individual in the unit has been accepted for assistance in another state and that fact has been established; or

(G) A child in the unit is removed from the home as a result of a judicial determination or is voluntarily placed in foster care.

009.05 WAIVER OF NOTICE. An applicant or recipient may agree to waive their right to a timely notice in situations that require timely notice by providing a signed statement indicating their choice to waive the notice.

009.06 IN FRAUD CASES. At least five days' advance written notice must be given if:

(A) The Department has facts indicating that action should be taken to discontinue, terminate, or reduce assistance because of probable fraud by the client; and

(B) The facts have been verified where possible through collateral sources.

009.07 CONTINUATION OF BENEFITS. Adverse action will not be carried out pending an appeal hearing if:

(1) The action being appealed required adequate and timely notice;

(2) The individual requests an appeal hearing in writing within ten days following the date the Notice of Action is mailed; and

(3) The individual does not refuse continued assistance.

009.07(A) CONTINUATION OF NORMAL CASE ACTIONS. Normal case actions, including implementing changes to the assistance case that are not directly related to the appeal issue, are still completed pending an appeal hearing.

009.07(B) BENEFIT RECOVERY. If the Department's action is sustained by the hearing decision, the benefits received by the unit during the appeal period are subject to recovery.

009.07(C) REFUSAL OF CONTINUED BENEFITS. An individual may refuse continuation of benefits pending an appeal hearing.

010. ELIGIBILITY REVIEW. Eligibility is redetermined every six months. Eligibility may be redetermined in less than six months to coordinate review dates for more than one program. An application is required as part of the eligibility review and to establish a new eligibility period.

011. COMPUTATION OF TIME. In computing time prescribed or allowed by Title 468 of Nebraska Administrative Code (NAC) or by any applicable statute or regulation in which the method of computing time is not specifically provided, days will be computed by excluding the day of the act or event and including the last day of the period. If the last day of the period falls on a Saturday, Sunday, or state holiday, the period shall include the next working day.

